



US Department
of Transportation

Research and
Special Programs
Administration

DOT-E 11410

49 CFR Part 107
Washington, D.C. 20590

EXPIRATION DATE: February 28, 1995

(FOR RENEWAL, SEE 49 CFR SECTION 107.105.)

1. GRANTEE: All Pure Chemical Company
Tracy, CA
2. PURPOSE AND LIMITATION: This emergency exemption authorizes the one-time transportation in commerce of a DOT Specification 106A500X tank car tank, containing Chlorine, Division 2.3, with two leaking unloading valve, which has been equipped with an emergency "B" Kit to prevent further leakage. This exemption provides no relief from any regulation other than as specifically stated herein.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR Sections 173.31(b)(1), (3), 179.300-12(b), 179.300-13(a) and 179.300-14
5. BASIS: This emergency exemption is based on All Pure Chemical Company's application dated February 14, 1995, submitted in accordance with 49 CFR 107.113 and a determination that it is necessary for the protection of life.
6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous materials description/proper shipping name	Hazard Class/Division	ID Number	Hazard Zone
Chlorine	2.3	UN1017	Hazard Zone B

7. PACKAGING AND SAFETY CONTROL MEASURES:

- a. Packaging prescribed is a DOT Specification 106A500X tank car tank which has two defective unloading valve that are equipped with a Chlorine Institute Emergency "B Kit" to prevent leakage during transportation.
- b. The tank must be braced and blocked to prevent movement during transportation.

8. SPECIAL PROVISIONS:

- a. The ton container will be transported by All Pure Chemical from Galt, California to Tracy, California, a distance of approximately 50 miles.
- b. Two emergency response team members will accompany the shipment.
- c. The tank must not be placed back into service prior to being repaired and tested.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle.

10. MODAL REQUIREMENTS: A copy of this exemption must be carried aboard the motor vehicle.

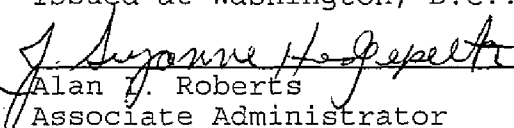
11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Registration required by 49 CFR 107.601 et seq., when applicable.

No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect unless a regulation has been amended making the exemption no longer necessary.

12. REPORTING REQUIREMENTS: The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (49 CFR 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incidents involving the package and shipments made under the terms of this exemption.

Issued at Washington, D.C.:


Alan T. Roberts
Associate Administrator
for Hazardous Materials Safety

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Address all inquiries to: Associate Administrator for Hazardous
Materials Safety, Research and Special Programs Administration,
Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

The original of this exemption is on file at the above office. Photo
reproductions and legible reductions of this exemption are permitted.
Any alteration of this exemption is prohibited.

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